

whether the \$2,325,000 is a reasonable amount.

"A determination as to the good faith of a settlement, within the meaning of section 877.6, necessarily requires the trial court to examine and weigh a number of relevant factors, *one of the most important of which is the settling party's proportionate liability.*" (*Mattco Forge, Inc. v. Arthur Young & Co.* (1995) 38 Cal.App.4th 1337, 1350 quoting *Toyota Motor Sales U.S.A., Inc. v. Superior Court* (1990) 220 Cal.App.3d 864, 871, italics in original.) "If *"there is no substantial evidence to support a critical assumption as to the nature and extent of a settling defendant's liability,* then a determination of good faith based upon such assumption is an abuse of discretion." (*Ibid.* italics in original.)

The Court acknowledges that \$2,325,000 is a substantial amount of money. However, without any evidence and discussion indicating what Plaintiff's potential recover is and evidence supporting Salas' counsel's opinion that he has little to no liability for the subject accident, the Court cannot make a reasoned determination as to the good faith nature of the settlement.

Conclusion

Defendant/Cross-Complainant Richard Salas' motion for determination of good faith settlement is **denied without prejudice**. Mr. Salas is free to file a new motion with additional evidence in support if he so desires.

6. 9:00 AM CASE NUMBER: C24-00162
CASE NAME: MARIA MALDONADO VS. GJACE RIDDELL
*HEARING ON MOTION IN RE: FOR LEAVE FOR ORDER REQUIRING PLAINTIFF MARIA MALDONADA
TO SUBMIT TO MULTIPLE INDEPENDENT MEDICAL EXAMS
FILED BY: RIDDELL, GJACE MORGN
TENTATIVE RULING:

Vacated.

7. 9:00 AM CASE NUMBER: C24-00841
CASE NAME: BRIAN BANIQUED VS. JUAN MANCHENO
*HEARING ON MOTION IN RE: EXPUNGE LIS PENDENS & FOR AWARD OF ATTORNEY'S FEES
FILED BY: MANCHENO, JUAN C.
TENTATIVE RULING:

Before the Court is a motion to expunge *lis pendens* filed by Defendant Juan C. Mancheno ("Defendant" or "Mancheno"). Plaintiff Brian Baniqued and Baniqued Realty Inc. dba Banquied Commercial Real Estate ("Plaintiffs" or "Banquied") recorded the *lis pendens* against 3114 Hermitage Road, Pebble Beach, California 93953.

Defendant did not make any objections to Plaintiffs' evidence, nor did he file a reply in support of his motion.

For the following reasons, the Defendant's Motion to Expunge *Lis Pendens* is **denied**.

Factual Background

On June 16, 2023, Plaintiffs filed a motion for summary judgment as to Defendant Mancheno's first amended complaint in Superior Court of California, County of Contra Costa, Case No.: C17-02539 (the "Underlying Action"). Defendant Mancheno did not oppose Plaintiffs' motion. (Declaration of Patrick A. Hormillosa ("Hormillosa Decl.") ¶ 2.)

Defendant Mancheno is the designated officer for the loan originator organization, Quality Lending Services Inc. and Defendant Mancheno is also the owner/broker for the real estate company Carmel By The Sea Realty. (Hormillosa Decl. ¶ 3; Exhibits A and B.)

In September 2023, Defendant Mancheno's companies participated in the purchase of the real property located at 3114 Hermitage Road, Pebble Beach, California 93953 ("Hermitage Property") on behalf of his daughter, Mackynzie Giovanna Mancheno. Yolanda Perez was the broker for the transaction on behalf of Carmel By the Sea Realty, but, Defendant Mancheno's e-mail address (Mancheno.juan@gmail.com) was listed on the Purchase Agreement. (Hormillosa Decl. ¶ 4.)

On October 23, 2023, the court granted Plaintiffs' motion for summary judgment as to Defendant Mancheno's first amended complaint in C17-02539.

On October 25, 2023, Defendant Mancheno is listed as the loan officer on the Champions Funding, LLC Approval Certification for a loan refinance against the Hermitage Property. Defendant Mancheno's company, Quality Lending Service, was also listed as the broker for the loan. (Hormillosa Decl. ¶ 6; Exhibit C.)

In the Fall 2023, Mackynzie Mancheno was listed as Chief Executive Officer, Secretary, and Chief Financial Officer of Defendant Mancheno's company, Quality Lending Service. Yolanda Perez was listed as the agent of service for the company. Mancheno was working as veterinary, assistant at Banfield Pet Hospital. (Hormillosa Decl. ¶ 7; Exhibits D and E.)

On January 30, 2024, the court entered Judgment in the Underlying Action in favor of Plaintiffs and confirmed that Defendant Mancheno would take nothing by way of his complaint against Plaintiffs, and awarded Plaintiffs their statutorily recoverable costs.

On March 28, 2024, Plaintiffs filed the instant action.

On July 5, 2024, Defendant Mancheno was personally served at the Hermitage Property.

Defendant filed an answer on February 11, 2025 and the instant motion on September 8, 2025.

Analysis

A motion to expunge a *lis pendens* may be filed "at any time" after the *lis pendens* is recorded. (CCP § 405.30.) Pursuant to CCP § 405.32, Defendant Mancheno moves for an order expunging the *lis pendens* recorded against the subject property, on the grounds that Plaintiffs' claims are not real property claims and that Plaintiffs cannot establish their probable validity.

The court may order the *lis pendens* expunged if: (1) the court finds that the pleading on which the notice is based does not contain a real property claim (Code Civ Proc § 405.31); (2) if the court finds that the claimant has not established by a preponderance of the evidence the probable validity of the

real property claim (Code Civ Proc § 405.32); or (3) the court finds that the real property claim has probable validity, but adequate relief can be secured to the claimant by the giving of an undertaking (Code Civ Proc § 405.33).

“Unlike most other motions, when a motion to expunge is brought, the burden is on the party opposing the motion to show the existence of a real property claim. (See § 405.30.)” *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647. The plaintiff must “[A]t least establish a prima facie case. If the defendant makes an appearance, the court must then consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.” *Howard S. Wright Construction Co. v. Superior Court* (2003) 106 Cal.App.4th 314, 319.

Real Property Claim

Plaintiffs argue that the cause of action for fraudulent conveyance in violation of Civil Code § 3439.04(a)(1) is a real property claim for purposes of the *lis pendens* statutes.

Section 405.4 defines a “real property claim” as the cause or causes of action in a pleading which would, if meritorious, affect title to, or the right to possession of, specific real property. If the pleading filed by the claimant does not properly plead a real property claim, the *lis pendens* must be expunged upon motion under Cal. Code Civ. Proc. § 405.31.

Section 405.31 provides: “In proceedings under this chapter, the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim.” In making this determination, the court must engage in a demurrer-like analysis. “Rather than analyzing whether the pleading states any claim at all, as on a general demurrer, the court must undertake the more limited analysis of whether the pleading states a real property claim. ... Review involves only a review of the adequacy of the pleading and normally should not involve evidence from either side, other than possibly that which may be judicially noticed as on a demurrer. ... Therefore, review of an expungement order under section 405.31 is limited to whether a real property claim has been properly pled by the claimant.” *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642 (internal quotations and citations omitted).

Here, Plaintiffs alleges in their second cause of action that they had a right to payment from Defendant Mancheno pursuant to the judgment obtained in the underlying action, that Defendant acquired the Hermitage Property via his daughter, Mackynzie Giovanna Mancheno, in order to avoid his creditors, with the intent to hinder, delay, and defraud Plaintiffs.” (FAC at ¶ 32.) The Plaintiffs further allege that “Defendant Mancheno obtained a loan against the Hermitage Property under his name and is preparing the property for sale.” (*Id.*) Additionally, Plaintiffs allege that “Mancheno engaged in the above conduct knowing that his remaining assets were unreasonably small in relation to the transfer or intending to incur, or believe that such transfer would result in, debt beyond his ability to pay as they became due.” (*Id.* at ¶ 34.)

Plaintiffs bring their fraudulent transfer claim pursuant to Civil Code § 3439.04(a)(1). That provision provides that “[a] transfer made or obligation incurred by a debtor is voidable as to a creditor, whether the creditor’s claim arose before or after the transfer was made or the obligation was incurred, if the debtor made the transfer or incurred the obligation ... [w]ith actual intent to hinder, delay, or defraud any creditor of the debtor.”

On its face, this would appear to involve the same type of property claim as *Kirkeby v. Superior Court* (2004) 33 Cal.4th 642, 647 (“*Kirkeby*”). The plaintiff in *Kirkeby*, as the Plaintiff here, only filed a fraudulent transfer claim to void the transfer “to the extent necessary to satisfy Plaintiffs’ Judgment

against Defendants.” (FAC, Prayer at ¶ 2; *Kirkeby, supra*, 33 Cal.4th at 646.) In *Kirkeby*, there were 26 other claims that did not involve the real property. Yet, because the UFTA specifically allows the remedy of “[a]voidance of the transfer or obligation to the extent necessary to satisfy the creditor's claim” (Civ. Code, § 3439.07, subd. (a)(1)), the *Kirkeby* court held that a fraudulent conveyance claim seeking avoidance of a transfer “is therefore a real property claim for the purposes of the *lis pendens* statutes.” *Kirkeby, supra*, at p. 649.

Plaintiffs’ FAC states a real property claim within the meaning of the *lis pendens* statute.

Probable Validity

Furthermore, Plaintiffs have submitted evidence which establishes by the preponderance of the evidence the probable validity of their real property claim. (CCP § 405.32.) Probable validity is that it is “more likely than not that the claimant will obtain judgment against the defendant on the claim.” (CCP § 405.3.) Plaintiffs have the burden in opposition to establish probable validity. (See *Hunting World, Inc. v. Superior Court* (1994) 22 Cal.App.4th 67, 73 [“[i]f a claimant has no convincing evidence of a fraudulent transfer, it will not meet this burden, and the court will expunge notice of *lis pendens*.”].)

Plaintiff alleges a claim for fraudulent conveyance pursuant to Civil Code § 3439.04(a)(1). Section 3439.04 subsection (a)(1) provides that “[a] transfer made or obligation incurred by a debtor is voidable as to a creditor, whether the creditor’s claim arose before or after the transfer was made or the obligation was incurred, if the debtor made the transfer or incurred the obligation as follows: ¶ (1) [w]ith actual intent to hinder, delay, or defraud any creditor of the debtor.” (Civ. Code § 3439.04.) In determining “actual intent” the Court may consider eleven enumerated factors, including “whether the value of the consideration received by the debtor was reasonably equivalent to the value of the asset transferred or the amount of the obligation incurred.” (Civ. Code § 3439.04(b)(8).) Pursuant to this section, “[a] creditor making a claim for relief under subdivision (a) has the burden of proving the elements of the claim for relief by a preponderance of the evidence.” (Civ. Code § 3439.04(c).)

Plaintiffs’ evidence suggests that Mackynzie Mancheno is a straw purchaser of the Hermitage Property and that the transaction was designed by Mancheno to avoid paying his creditors, including Plaintiffs. Plaintiffs have demonstrated the probable validity of their real property claim.

Attorneys’ Fees

California Code of Civil Procedure section 405.38 provides that a “court shall direct that the party prevailing on any motion under this chapter be awarded the reasonable attorney’s fees and costs of making or opposing the motion unless the court finds that the other party acted with substantial justification or that other circumstances make the imposition of attorney’s fees and costs unjust.” (Code Civ. Proc, § 405.38.) Such fees are mandatory, except where the court finds that the losing party acted with substantial justification such that an imposition of fees would be unjust. (*Ibid.*) Any such award shall only be against the losing party, not that party’s counsel. (*Doyle v. Superior Court* (1991) 226 Cal.App.3d 1355, 1359.)

Plaintiffs, as the prevailing party, are entitled to attorney’s fees in this matter. Plaintiffs’ counsel has not provided a declaration detailing their hourly rate and number of hours worked defending the instant Motion. In the absence of such documentation the Court cannot award Plaintiffs attorney’s fees at this time.

8. 9:00 AM CASE NUMBER: C24-01622
CASE NAME: CHRISTOPHER JARZYNKA VS. TATILA DOWNING
***HEARING ON MOTION IN RE: AMEND COMPLAINT**
FILED BY: JARZYNKA, CHRISTOPHER THOMAS
TENTATIVE RULING:

Plaintiff's unopposed motion to amend the complaint is granted for the reasons stated in the motion.

Plaintiff shall file the amended complaint by January 5, 2026.

9. 9:00 AM CASE NUMBER: C25-00144
CASE NAME: YONGCHAN PARK VS. MICHAEL YANG
HEARING ON SUMMARY MOTION BY PLAINTIFF
FILED BY:
TENTATIVE RULING:

Appearance required.

10. 9:00 AM CASE NUMBER: C25-00498
CASE NAME: MARY AFFINITO VS. DE LA HOUSAYE & ASSOCIATES, ALC
***HEARING ON MOTION IN RE: TO TAX COSTS**
FILED BY: DE LA HOUSAYE & ASSOCIATES, ALC
TENTATIVE RULING:

Cross-complainant's unopposed motion to tax costs is granted for the reasons stated in the motion.

11. 9:00 AM CASE NUMBER: C25-01478
CASE NAME: EMAD ISKANDER VS. JOAN OCAMPO (EMPLOYEE)
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: JOAN OCAMPO (EMPLOYEE)
TENTATIVE RULING:

Defendant's unopposed demurrer to the complaint is sustained without leave to amend.

As mentioned, plaintiff filed no opposition to the demurrer, so no allegations or facts are advanced at this juncture to provide leave to amend.